

No opposition filed.

Operative complaint was filed by Plaintiff on July 7, 2025 seeking cancellation of Trustee sale and deed of subject property on December 11, 2024 along with quieting title.

In the instant motion, Defendant Fidelity National Title Company demurrers to all causes of action in the operative complaint.

The court's review of the complaint and moving papers leads the court to conclude that Plaintiff has not plead any actionable cause as to the *instant* defendant, Fidelity National Title Company who was the foreclosure trustee without any further involvement such as the mortgage holder and/or authorized agent for such.

Unless Plaintiff can specify how leave to amend can cure this deficiency, the court must sustain without leave to amend.

Moving party to provide notice pursuant to CCP 1019.5.

**4.**

| CASE #      | CASE NAME                                   | HEARING NAME                                                                   |
|-------------|---------------------------------------------|--------------------------------------------------------------------------------|
| CVPS2504342 | CISNEROS VS FIDELITY NATIONAL TITLE COMPANY | DEMURRER ON COMPLAINT OF CARLOS S. CISNEROS BY FIDELITY NATIONAL TITLE COMPANY |

**Tentative Ruling:** Moot as result of court ruling on accompanying demurrer.

Moving party to provide notice pursuant to CCP 1019.5.